(Pursuant to a decision rendered in accordance with the *Act respecting Access to documents held by public bodies and the Protection of personal information*)

REVIEW

a) Power

Article 135 of the Act stipulates that every person whose request has been denied in whole or in part by the person in charge of access to documents or of the protection of personal information may apply to the Commission d'accès à l'information for a review of the decision. An appeal may also be brought for a failure to respond within the applicable time limit.

The application for review must be made in writing; it may state briefly the reasons for which the decision should be reviewed (article 137).

The Commission d'accès à l'information may be reached at the following addresses :

MONTREAL	**QUEBEC**
500, boulevard René-Lévesque Ouest Suite 18.200 Montréal (Québec) H2Z 1W7	525, boulevard René-Lévesque Est Suite 2.36 Québec (Québec) G1R 5S9
Telephone : 514 873-4196 Fax : 514 844-6170	Telephone : 418 528-7741 Fax : 418 529-3102

Toll-free number for both offices: 1 888 528-7741

b) Grounds

An application for review may be based on grounds pertaining to the decision, the time prescribed for processing the request, the mode of access to a document or information, the fees payable, or the application of Article 9 (personal notes written on a document, sketches, outlines, drafts, preliminary notes or other documents of the same nature which are not deemed to be documents held by a public body).

c) Time limit

The application for review must be made to the Commission d'accès à l'information within thirty (30) days of the date of the decision or of the time granted by the Act to the person in charge for processing a request (Article 135).

The Act specifically provides that the Commission d'accès à l'information may, for any serious reason, release the applicant from a failure to respect the thirty-day time limit (Article 135).

APPEAL TO THE COUR DU QUEBEC

a) Power

Article 147 of the Act - A person directly interested may bring an appeal from the final decision of the Commission before a judge of the Court of Québec on a question of law or jurisdiction, including an order of the Commission issued following an investigation, or, with leave of a judge of that Court, from an interlocutory decision that will not be remedied by the final decision

Article 147.1 of the Act - The application for leave to appeal from an interlocutory decision must specify the questions of law or jurisdiction that ought to be examined in appeal and the reason the interlocutory decision will not be remedied by the final decision and, after notice to the parties and to the Commission, be filed in the office of the Court of Québec within 10 days after the date on which the parties receive the Commission's decision.

If the application is granted, the judgment authorizing the appeal serves as a notice of appeal.

b) Time limit and costs

Article 149 of the Act - The appeal is brought by filing with the Court of Québec a notice to that effect specifying the questions of law or jurisdiction that ought to be examined in appeal.

The notice of appeal must be filed at the office of the Court of Québec within 30 days after the date the parties receive the final decision.

c) Procedure

Article 150 of the Act - The filing of the notice of appeal or of the application for leave to appeal from an interlocutory decision suspends the execution of the decision of the Commission until the decision of the Court is rendered. If it is an appeal from a decision ordering a public body to cease or refrain from doing something, the filing of the notice or application does not suspend execution of the decision.

Article 151 of the Act - The notice of appeal must be served on the parties and on the Commission within 10 days after its filing at the office of the Court of Québec. The secretary of the Commission shall send a copy of the contested decision and the documents related to the contestation to the office of the Court, to serve as a joint record.